

Tentative Rulings for August 12, 2026
Department 503

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

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Tentative Rulings for Department 503

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(20)

Tentative Ruling

Re: ***Sedano v. City of Fresno et al.***
Superior Court Case No. 23CECG04664

Hearing Date: August 12, 2026 (Dept. 503)

Motion: By Cross-Defendants City of Fresno and Marco Flores for
Judgment on the Pleadings

Tentative Ruling:

To deny. (Code Civ. Proc., § 438.)

Explanation:

The City of Fresno and Marco Flores ("cross-defendants") move for judgment on the pleadings of the Cross-Complaint filed by Valeda Company, which seeks implied indemnity, comparative contribution, equitable indemnity, and declaratory relief. (See RJN Exh. A.)

The motion is denied for two reasons. First, it is brought pursuant to Code of Civil Procedure section 438, and therefore was to be filed prior to a pretrial conference order, or within 30 days of the date the action is initially set for trial, whichever is later. (Code Civ. Proc., § 438, subd. (e).) The motion clearly was not filed within these timeframes, with trial set to begin on August 24, 2026.

The motion must be denied on the merits as well. The motion is brought on the ground that Valeda did not comply with claim presentation requirements before filing the cross-complaint. (See Code Civ. Proc., §§ 911.2, 945.4.) An attack on the pleadings must be based solely on the factual allegations in the complaint, which are accepted as true, except when contradicted by exhibits to the complaint or documents of which the court has taken judicial notice. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 367.)

The moving papers correctly point out that "[i]f a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity's records do not show compliance." (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.) This should be established by way of declaration by an employee of the public entity showing that a search was made for a claim, but the public entity's records show that no such claim exists. (See, e.g., *Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1752 ["A state employee familiar with the records of the Board of Control searched the records and so declared."]) Here however, all that is presented is a meet and confer declaration by cross-defendant's counsel stating that he informed Valeda's counsel that Valeda failed to submit a claim. (Chahal Decl., ¶¶ 1, 3, 5.) This obvious hearsay is not competent evidence of the fact upon which the motion depends. Accordingly, cross-defendants' request for judicial notice item 2 is denied, and the motion must be denied as well.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/10/2026 .
(Judge's initials) (Date)

(03)

Tentative Ruling

Re: ***Sandra Ramirez v. American Honda Motor Co., Inc.***
Case No. 24CECG02774

Hearing Date: August 12, 2026 (Dept. 503)

Motion: Plaintiffss Motion for Attorney's Fees and Costs

Tentative Ruling:

To grant plaintiff's motion for attorney's fees in the amount of \$29,425.63, and costs in the amount of \$7,493.48.

Explanation:

1. As the Prevailing Parties, Plaintiff Is Entitled to Reasonable Fees and Costs

First, since the plaintiffs are the prevailing plaintiff in litigation under the Song-Beverly Act, plaintiffs are entitled to an award of their reasonable attorney's fees, expenses, and costs incurred in litigating the action. (Civil Code, § 1794, subd. (d).) Defendant do not dispute that plaintiffs are entitled to an award or their reasonable attorney's fees. Therefore, the only real issue is the amount of fees that plaintiff should receive.

2. Calculating Fees

A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case.' (Serrano v. Priest (Serrano III) (1977) 20 Cal.3d 25, 48.) As our Supreme Court has repeatedly made clear, the lodestar consists of "the number of hours *reasonably expended* multiplied by the *reasonable* hourly rate. . . ." (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095, italics added; Ketchum v. Moses (2001) 24 Cal.4th 1122, 1134.) The California Supreme Court has noted that anchoring the calculation of attorney fees to the lodestar adjustment method "'is the only way of approaching the problem that can claim objectivity, a claim which is obviously vital to the prestige of the bar and the courts.'" (Serrano III, *supra*, 20 Cal.3d at p. 48, fn. 23.)

While the fee awards should be fully compensatory, the trial court's role is not to simply rubber stamp the defendant's request. (Ketchum v. Moses, *supra*, 24 Cal.4th at p. 1133; Robertson v. Rodriguez (1995) 36 Cal.App.4th 347, 361.) Rather, the court must ascertain whether the amount sought is reasonable. (Robertson v. Rodriguez, *supra*, 36 Cal.App.4th at p. 361.) However, while an attorney fee award should ordinarily include compensation for all hours reasonably spent, inefficient or duplicative efforts will not be compensated. (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) The constitutional requirement of just compensation, "cannot be interpreted as giving the [prevailing party] carte blanche authority to 'run up the bill.'" (Aetna Life & Casualty Co.

v. *City of Los Angeles* (1985) 170 Cal.App.3d 865, 880.) The person seeking an award of attorney's fees "is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him]. [Citations.]" (*Salton Bay Marina, Inc. v. Imperial Irrigation Dist.* (1985) 172 Cal.App.3d 914, 950.)

The basis for the trial court's calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 395, citing *Ketchum v. Moses*, *supra*, 24 Cal.4th at p. 1133.)

A. Number of Hours Billed

A review of each billing entry shows that the time billed by the attorney timekeepers is reasonable. Counsel billed only 58.7 hours for over one year of work on the case. The attached time records show that the billing entries are reasonable. (Kirnos Decl., Ex. A.) Defendant has not opposed the fees motion or made any attempt to show that the requested hours are excessive, padded, unnecessary, or duplicative. Therefore, the court intends to approve the full amount of time spent on the case.

B. Reasonable Hourly Compensation

Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type" (*Ketchum v. Moses*, *supra*, 24 Cal.4th at p. 1133.) Ordinarily, "the value of an attorney's time . . . is reflected in his normal billing rate." (*Mandel v. Lackner* (1979) 92 Cal. App. 3d 747, 761.)

The "experienced trial judge is the best judge of the value of professional services rendered in his court." (*Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 832.) Based on a consideration of various factors, the trial court may rely on its own expertise and knowledge to calculate reasonable attorney fees. (*Niederer v. Ferreira* (1987) 189 Cal. App. 3d 1485, 1507.) "When the trial court is informed of the extent and nature of the services rendered, it may rely on its own experience and knowledge in determining their reasonable value." (*In re Marriage of Cueva* (1978) 86 Cal. App. 3d 290, 300.) The court is not limited to the affidavits submitted by the attorney. (*Melnyk v. Robledo* (1976) 64 Cal. App. 3d 618, 625.)

Here, plaintiffs' counsel seeks hourly rates of \$200 to \$600. Counsel's rates are reasonable based on their skill, background, and experience. Defendants have not opposed the motion or attempt to show that the requested rates are unreasonable. Therefore, the court intends to approve the requested rates. Thus, the court sets the total lodestar fees at \$23,540.50.

C. Multiplier

Plaintiffs seek a multiplier of 1.5.

"[T]he statutory language of section 1794, subdivision (d), is reasonably compatible with a lodestar adjustment method of calculating attorney fees, including use of fee multipliers. Since our Supreme Court has held that the lodestar adjustment

method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary, we conclude it is applicable to attorney fee awards under section 1794, subdivision (d)." (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 818–819, citation omitted.)

"The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. As the Supreme Court subsequently explained, the initial lodestar amount is based on the reasonable rate for *noncontingent* litigation of the same type, which amount may then be enhanced (e.g., through use of a so-called multiplier) to account for factors such as the contingent nature of the case: 'The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.'" (*Id.* at p. 819, citations omitted, italics in original.)

Here, plaintiffs' counsel worked on the case on a contingency basis, which supports application of a lodestar multiplier to compensate counsel for the risk that they would not be paid if plaintiff did not prevail on her claims. The case also involved some specialized skill, as "lemon law" cases are a technical and specialized area of law. Counsel also obtained good results for their client, as they were able to obtain a settlement of \$47,000 after almost a year and half of litigation. Plaintiffs' counsel also worked on the case for 58.7 hours over the course of sixteen months, during which time counsel was precluded from working on other cases to some extent. Therefore, a multiplier is warranted under the circumstances.

However, the plaintiffs' request for a multiplier of 1.5 is excessive, as the issues of the case were not extremely complex or difficult, the time spent by counsel was not extensive, and the results obtained were good but not exceptional. Therefore, the court will only apply a multiplier of 1.25 rather than 1.5.

D. Total Attorney's Fees Awarded

Applying a 1.25 multiplier to the lodestar fees, the court intends to award total fees of \$29,425.63.

4. Costs

Plaintiffs seek costs and expenses of \$7,493.48. Plaintiffs' memo of costs is sufficient to make a prima facie showing that the costs were reasonably necessary to the litigation. Thus, the burden is on defendant to show that the costs were not reasonably incurred or that they are unreasonable in amount. Defendant has not objected to the requested costs. Therefore, the court intends to approve the requested costs in the full amount of \$7,493.48.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/10/2026.
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Lopez v. Mitchell et al.***
Superior Court Case No. 21CECG02405

Hearing Date: August 12, 2026 (Dept. 503)

Motion: Default Prove-Up

Tentative Ruling:

The requested judgment has been signed. The hearing is off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Gunner v. Aboujaoude, Inc. et al.***
Superior Court Case No. 25CECG04744

Hearing Date: August 12, 2026 (Dept. 503)

Motion: Default Prove-Up

Tentative Ruling:

Hearing remains on calendar. The parties are directed to appear on August 12, 2026, at 3:30 p.m. in Department 503.

Explanation:

By defaulting, defendant admits liability for the debt or obligation on all well pled causes of action. (*Morehouse v. Wanzo* (1968) 266 Cal.App.2d 846, 853.) A default does not, however, admit that the amount prayed for is the proper amount. (*Brown v. Superior Court* (1966) 242 Cal.App.2d 519, 526.) The court is required to enter judgment only for such sum as appears just. (Code Civ. Proc., § 585, subd. (b).) Plaintiff must present evidence proving the amount of damages, including evidence as to any partial payments made by defendants. Without such evidence, the court may refuse to enter judgment in any amount, notwithstanding defendants' default. (*Taliaferro v. Hoogs* (1963) 219 Cal.App.2d 559, 560.)

Plaintiffs Richard V. Gunner and Michael R. Gunner (collectively "Plaintiffs") have given notice of intent to present testimony. The following issues remain to be addressed at the hearing:

Required Forms Not Filed:

A proposed judgment is not lodged with the court. (Cal. Rules of Court, rule 3.1800(a)(6).) A proposed judgment is requested.

Dismissal of Doe Defendants:

Doe defendants must be dismissed prior to seeking default judgment. (Cal. Rules of Court, rule 3.1800 (a)(7).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026
(Judge's initials) (Date)